



Data Retention Policy

Policy no:	5.3
Version date	August 2026
Approved by	Board of Governors
Policy group	Governance
Version number	V1
Next review due	August 2027
External reference points	Statutory UK GDPR & Data Protection Act, May 2018 Information Commissioners Office (ICO) Guidance ICO Data Protection helpline 0303 123 1113 & 01625 545 745 Privacy and Electronic Communications Regulations (PECR), 2003 HESA (Higher Education Statistics Agency) HM Revenue & Customs (HMRC) Requirements Immigration (Home Office / UKVI) Requirements Employment Law (Employment Rights Act 1996) Freedom of Information Act 2000 (FOIA) Limitation Act 1980 Safeguarding (Children Act 2004 / Working Together to Safeguard Children) Prevent Duty Guidance (Counter-Terrorism and Security Act 2015) Health and Safety at Work etc. Act 1974 Control of Substances Hazardous to Health (COSHH) 2002 Regulatory Reform (Fire Safety) Order 2005 Reporting Injuries, Diseases and Dangerous Occurrences Regulations 2013 (RIDDOR) Regulatory Office for Students (OfS) Ofqual and Awarding bodies or organisations (e.g. Pearson BTEC) Office of the Independent Adjudicator for Higher Education (OIAHE) JISC Records Retention Schedule UK Quality Code for Higher Education Principle 4 Adhering to ethical and data protection requirements including gathering and submitting data for national data sets, regulatory purposes, and internal monitoring and evaluation.

Version Control			
Previous Version	New Version	Date	Update/Notes
V1 April 2025	V2	August 2026	Significant changes to update the policy in line with TEC's Data Protection Policy and Data Privacy Notice and Consent Policy.

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1. Introduction

This policy is the authoritative reference point for the retention requirements of all data types handled by Trent Education Centre (TEC). It should be read alongside the Data Protection Policy and the Data Privacy Notice and Consent Policy, which together set out TEC's full approach to data governance, privacy, and compliance.

The retention periods in this policy are aligned with relevant statutory (UK GDPR and the Data Protection Act 2018) and regulatory requirements, as detailed in the section: *Statutory and Regulatory Data Retention Requirements*. These requirements have been applied directly when determining retention periods for each data type in the TEC *Data Retention Schedule* (see below). Where no statutory or regulatory retention period exists, TEC has adopted sector-standard retention norms used across UK further and higher education, with clear justification provided.

The Data Retention Schedule is intended to include all types of data and their retention periods that are handled at TEC. Despite the best efforts, there may be some data subsequently identified or generated that needs to be added to the Schedule. In such cases the Data Protection Lead (DPL) or their nominee will update the schedule and incorporate it into the next review of this policy. No data held by TEC staff may be deleted unless authorised by the DPL and the Head of Partnerships and Compliance (HPC) or their nominees.

TEC is not currently registered with the Office for Students (OfS) but has submitted an application for registration. This policy ensures TEC is prepared for OfS registration by having effective governance arrangements that includes a clear policy and procedure that ensures compliance with data retention and disposal requirements.

2. Purpose and Scope

This policy provides the source of truth for the data retention requirements of all data that TEC handles. Without this policy, staff may dispose of data that needs to be retained and may retain data that needs to be disposed of at the appropriate time according to the storage-limitation principles of the UK GDPR and the Data Protection Act 2018 (see below).

This policy may be referred to by staff annually in order to identify what data they are responsible for handling, when it needs to be disposed of, how to get authorisation for its disposal, how to dispose of it and how to record the disposal in the Data Disposal Log (see the Appendix).

The policy also sets out all the responsibilities of staff, board and committee members and other stakeholders in relation to data retention and disposal. It covers all of TEC's operations and provision including further education, English language and higher education programmes delivered independently by TEC or in partnership with other organisations.

3. Aims and Objectives

This policy ensures that TEC staff do not dispose of data that needs to be retained and do not retain data that needs to be disposed of. This ensures that TEC is compliant with all statutory, regulatory, contractual and quality assurance requirements. The policy aims to provide staff with clear information about the retention periods for all data they handle, with clear explanations and justifications for those periods. The objectives are to:

- Ensure compliance with UK GDPR and the Data Protection Act 2018, including the storage-limitation principle
- Ensure compliance with all other relevant legislation and regulations listed in the Statutory and Regulatory Data Retention Requirements section
- Provide staff with clear guidance on the retention periods for all data types they handle
- Provide staff with guidance on the safe and secure disposal of data when retention periods expire
- Ensure a consistent, defensible, and justifiable approach to data retention and erasure for all TEC data is maintained

4. Storage Limitation Principle

The storage-limitation principle, set out in UK GDPR Article 5(1)(e) and supported by the Data Protection Act 2018, requires TEC to keep personal data only for as long as it is necessary for the lawful purpose for which it was collected. Once that purpose has ended, the data must be securely deleted. TEC applies this principle through the following practices:

- Personal data is deleted when it is no longer required for legal, regulatory, operational, or quality-assurance purposes
- A clear justification is provided for every retention period adopted in this policy (see the Data Retention Schedule below)
- Data is not retained without an appropriate justification, and must never be kept “just in case”
- Retention periods are documented in this policy (see the Data Retention Schedule below) and must be followed consistently by all staff

5. Data Disposal Log

Once authorisation has been given for the disposal of any data at TEC by the Data Protection Lead (or their nominee) and the Head of Partnerships and Compliance (or their nominee) it must be recorded by staff in the Data Disposal Log. This includes:

- The data being disposed of
- The date of disposal
- The retention period applied
- The reason and justification for its disposal
- The staff member who proposed the disposal.
- Authorisation of the disposal by the Data Protection Lead (DPL)
- Authorisation of the disposal by the Head of Partnerships and Compliance (HPC)

6. Key Responsibilities

All staff are responsible for ensuring that this Data Retention Policy is fully implemented. Safe retention and secure disposal of data, in line with this policy, is required of all staff who handle personal or other organisational data at TEC

6.1. All staff

All staff must review the data they are responsible for on an annual basis and refer to the Data Retention Schedule (see below) to determine whether any data should be retained or securely erased. No data may be erased without:

- Checking the relevant retention period, and
- Obtaining approval from both the Data Protection Lead (DPL) and the Head of Partnerships and Compliance (HPC).

Staff must follow TEC's secure disposal procedures and ensure all disposal actions are recorded in the Data Disposal Log.

6.2. Data Protection Lead (DPL)

The DPL (or their nominee) is responsible for the implementation of this policy by ensuring that clear information and training is provided to all staff who handle data. The DPL also monitors the recording of data disposal in the Data Disposal Log by ensuring that staff:

- Accurately record data for disposal in the Data Disposal Log
- Give their authorisation for the disposal of data
- Obtain authorisation from the HPC (or their nominee) for the disposal of data

Before staff can dispose of any data, they must get approval from the DPL (or their nominee) and the HPC (or their nominee) and this must be recorded in the Data Disposal Log (see the Appendices).

6.3. Head of Partnerships and Compliance (HPC)

The HPC monitors and reviews the implementation of this policy and provides support and training to the DPL and all staff who handle data at TEC. Before any data is disposed of, the HPC (or their nominee) must authorise the disposal, and this authorisation must be recorded in the Data Disposal Log. The HPC reports to the Senior Management Team on:

- Compliance with this policy
- Adherence to statutory and regulatory retention requirements
- Risks or issues relating to data retention and disposal

7. Safe Data Storage

TEC staff must store all data safely and securely. Hard-copy data is stored in the TEC Head Office in Nottingham in a locked drawer and a locked room. Digital data is stored on secure servers, password protected, backed up, and accessible only to authorised staff.

TEC stores personal data on secure cloud systems that comply with UK GDPR and have approved safeguards for any international transfers.

All access to personal data is restricted. Only staff who need data for appropriate reasons have access. All staff are trained about Data Protection including the need for privacy and confidentiality.

8. Method of Data Disposal

Once the disposal of data has been authorised and recorded in the Data Disposal Log, it must be disposed of safely. Data in hard copy documents must be destroyed professionally normally by shredding. Digital data must be removed completely from all platforms including servers and back-up systems.

9. Policy Review

This policy is reviewed by the Data Protection Lead (or their nominee) and the Head of Partnerships and Compliance (or their nominee) annually. The policy may be reviewed at any time if there are statutory, regulatory or contractual changes that affect the retention periods of data or if new types of data are identified and need to be added to the Data Retention Schedule. This policy is submitted to the Senior Management Team for review and to the Board of Governors for approval.

10. Statutory and Regulatory Data Retention Requirements

Education				
Legislation and Regulation	Data Subject	Data	Retention Period	Reason
Higher Education Statistics Agency (HESA)	Students	Enrolment, demographic, continuation, completion, attainment	10 years	Supports statutory reporting, regulatory monitoring, audit requirements, and longitudinal outcomes analysis
Office for Students (OfS)	Students, Staff, Board Members	Data required for OfS registration, annual returns, continuation/completion/progression data, governance records	6 years (student data), Permanent (governance records)	Required for regulatory compliance, Condition E2 governance, Condition C student protection, and audit trails
Ofqual & Awarding Organisations (e.g., Pearson, ATHE, NCFE, Ascentis)	Students, Assessors, Internal Verifiers	Assessment records, moderation documentation, external examiner reports, certification data	6 years	Required for awarding-body audits, external verification, quality assurance, and evidence for disputes or appeals
Office of the Independent Adjudicator for Higher Education (OIAHE)	Students	Completion of Procedures (COP) letters, appeal files, complaint records	6 years	Required to respond to OIAHE investigations, defend decisions, and meet sector norms for student complaints
JISC Records Retention Schedule	Students, Staff	Assessment records, exam scripts, moderation reports, academic appeals, misconduct records	6 years	Sector-standard FE/HE retention schedule; aligns with Limitation Act and awarding-body requirements
Immigration (Home Office / UKVI)	International students, international staff	Passport, visa, BRP, right-to-study checks, attendance monitoring	6 years	Required for immigration compliance; aligns with Limitation Act for legal claims

Employment				
Legislation	Data Subject	Data	Retention Period	Reason
HM Revenue & Customs (HMRC)	Staff	Financial and payroll records (PAYE, tax, NI, salary)	3–6 years	Required for taxation audits and statutory financial reporting
Employment Law (Employment Rights Act 1996)	Staff	Contracts, grievances, disciplinary records, HR correspondence	6 years	Required for employment law compliance and legal claims
Prevent Duty (Counter-Terrorism and Security Act 2015)	Students, staff, visitors	Prevent referrals, risk assessments, safeguarding concerns	6 years (or indefinite for serious cases)	Required for safeguarding, Prevent compliance, and legal defence
Safeguarding (Children Act 2004 / Care Act 2014)	Students, staff, visitors	Safeguarding records, welfare concerns, risk assessments	6 years (or indefinite for serious cases)	Required for safeguarding compliance and long-term risk management

Information and Data				
Legislation	Data Subject	Data	Retention Period	Reason
Freedom of Information Act 2000 (FOIA)	All data subjects	Any information that may be requested by regulators, auditors, or the public	6 years	Aligns with Limitation Act 1980 and ensures TEC can respond to regulatory or information requests
Limitation Act 1980	Staff, partners, contractors, students	Employment data, contracts, disputes, grievances, claims	6 years	Required to defend or bring legal claims
UK GDPR & Data Protection Act 2018	All data subjects	Any personal data collected, processed, stored or shared by TEC	Only as long as necessary for the purpose collected (retention periods defined by statutory, regulatory or sector norms)	UK GDPR storage-limitation principle and ensures TEC does not retain personal data longer than necessary
Information Commissioner's Office (ICO) Guidance	All data subjects	Any personal data processed under UK GDPR	As per statutory or sector-norm retention periods	ICO guidance requires organisations to justify retention periods and follow best practice
ICO Data Protection Helpline (0303 123 1113 / 01625 545 745)	All data subjects	Records of data-protection enquiries, advice sought, or complaints escalated to ICO	6 years	Aligns with Limitation Act 1980; ensures TEC can evidence compliance advice and responses to regulatory queries
Privacy and Electronic Communications Regulations (PECR) 2003	Students, staff, applicants, alumni	Marketing consents, email/SMS communication preferences, opt-out records	Until consent is withdrawn + 2 years	Required to demonstrate lawful electronic marketing; aligns with ICO PECR guidance

Health and Safety				
Legislation	Data Subject	Data	Retention Period	Reason
Health and Safety at Work etc. Act 1974	Staff, contractors, visitors	Accident records, incident logs, risk assessments, H&S training	3 years	Required for legal compliance, investigations, and risk management
Health and Safety at Work etc. Act 1974 (High-risk assessments)	Staff, contractors, visitors	High-risk assessments	Indefinite	Required for long-term risk management and legal defence
Control of Substances Hazardous to Health (COSHH) 2002	Staff, contractors	Exposure records, monitoring data, incident logs	40 years	Required due to long-term health risks and potential legal claims
Regulatory Reform (Fire Safety) Order 2005	Staff, contractors, visitors	Fire risk assessments, evacuation drills, equipment maintenance logs	3 years	Required for fire safety compliance and audit trails
Control of Asbestos Regulations 2012	Staff, contractors, visitors	Asbestos surveys, management plans, exposure records	40 years	Required due to long-term health risks and legal obligations
RIDDOR 2013 (Reporting of Injuries, Diseases and Dangerous Occurrences Regulations)	Staff, contractors, visitors	Records of reportable injuries, dangerous occurrences, occupational diseases	3 years	Required for statutory reporting and legal compliance

11.TEC Data Retention Schedule

Students				
Data Category	Data Subjects	Examples of Data	Retention Period	Legal / Regulatory Basis
Admissions & Enrolments	Successful applicants, Students	Application forms, identity documents, qualifications, right-to-study	6 years after leaving (legal) 1 extra year	Limitation Act 1980, OfS and FOIA principles, addition year for audits, appeals, awarding body or organisation and regulator checks
	Unsuccessful applicants	Application forms, identity documents, qualifications, right-to-study	1 year after admissions round	Allows time for appeals and fraud checks
Special Category Data (SEND, health, disability)	Applicants, Students, Staff	Health disclosures, disability evidence, support plans	6 years (or indefinite if safeguarding-related)	UK GDPR Art. 9 and Safeguarding
Immigration / UKVI Compliance	International students, staff	Passport, visa, BRP, attendance monitoring	6 years	Home Office / UKVI and Limitation Act
Student Records (active students)	Students	Personal details, attendance, engagement, assessments	6 years after leaving	Limitation Act, OfS, awarding bodies or organisations and regulator checks
Disciplinary & Conduct Records	Students, Staff	Misconduct, appeals, investigations	6 years	Limitation Act and OfS
Complaints & Appeals	All data subjects	Complaint forms, appeal decisions	6 years	Limitation Act and OfS
Safeguarding / Prevent	Students, Staff, Visitors	Welfare concerns, Prevent referrals	6 years, or indefinite for serious cases	Safeguarding law and Prevent Duty
Assessment and Examination Records	Students	Coursework, exam scripts, video presentations, marking records, moderation/internal verification reports, external examiner reports, assessment board decisions	6 years	Awarding bodies or organisations, OfS, Limitation Act and JISC Records Retention Schedule

Data Category	Data Subjects	Examples of Data	Retention Period	Legal / Regulatory Basis
Academic Misconduct Records	Students	Plagiarism reports, misconduct investigation files, viva records, Turnitin similarity reports, panel decisions, sanctions, appeal outcomes	6 years	JISC Records Retention Schedule, Awarding body or organisation requirements; Limitation Act 1980, OfS Condition E2 (governance & quality assurance)
Academic Appeals Records	Students	Appeal forms, evidence submissions, panel minutes, hearing notes, correspondence, outcome letters, decisions relating to grades, progression, mitigating circumstances, withdrawals	6 years	JISC Records Retention Schedule, OfS Condition C (Student Protection & Fair Procedures), Awarding body or organisation Requirements and Limitation Act 1980
Award & Certification Records	Students, Former Students	Transcripts, certificates, grades	Permanent	Sector norm and awarding bodies or organisations
Graduate Outcomes Data	Former Students	Employment outcomes	10 years	HESA and OfS
HESA Data	Students, Former Students	Enrolment, demographic, continuation, completion, attainment	10 years	HESA, OfS and audit requirements

Staff				
Data Category	Data Subjects	Examples of Data	Retention Period	Legal / Regulatory Basis
Staff HR Records	Staff	Contracts, payroll, appraisals, training	6 years after employment ends	Employment Rights Act and Limitation Act
Payroll & Tax Records	Staff	PAYE, NI, salary, deductions	3–6 years	HMRC
DBS Checks	Staff, Contractors	DBS certificates, risk assessments	Up to 6 months (certificate), 6 years (decision records)	DBS Code of Practice
Insurance Records (TEC)	Staff, Contractors, Public	Employer liability insurance, public liability insurance, contractor insurance certificates	6 years	Limitation Act 1980, Companies Act and Employer Liability Regulations

Health and Safety				
Data Category	Data Subjects	Examples of Data	Retention Period	Legal / Regulatory Basis
Health & Safety Records	Staff, Contractors, Visitors	Accident logs, risk assessments	3 years	HSW Act 1974
High-Risk H&S Assessments	Staff, Contractors	High-risk risk assessments	Indefinite	HSW Act
COSHH Records	Staff, Contractors	Hazardous substance exposure	40 years	COSHH 2002
Asbestos Records	Staff, Contractors, Visitors	Asbestos surveys, exposure	40 years	Asbestos Regulations 2012
RIDDOR Records	Staff, Contractors, Visitors	Reportable injuries, dangerous occurrences	3 years	RIDDOR 2013
Fire Safety Records	All building users	Fire risk assessments, drills, maintenance logs	3 years	Fire Safety Order 2005
Governance				
Data Category	Data Subjects	Examples of Data	Retention Period	Legal / Regulatory Basis
Board & Committee Records	Board members	Minutes, decisions, declarations of interest	Permanent	Governance best practice
Fit & Proper Person Records	Board members	Declarations, checks	6 years	OfS Condition E2
Financial Records	All data subjects	Invoices, payments, refunds	6 years	HMRC and Companies Act
Partner Organisation Records	External bodies	Contracts, due diligence, QA documentation	6 years	Contract law and Limitation Act
Contractor Records	Contractors	Credentials, insurance, access logs	6 years	Contract law and Limitation Act

Information and Data				
Data Category	Data Subjects	Examples of Data	Retention Period	Legal / Regulatory Basis
IT Logs & Security Records	All data subjects	Access logs, audit trails	1 year	Cybersecurity best practice
Email Correspondence	All data subjects	Operational emails	6 years	Limitation Act
Marketing Consents	Students, Staff	Consent records	Until withdrawn + 2 years	PECR and UK GDPR
Data Breach Records	All data subjects	Incident reports, ICO notifications	6 years	ICO guidance and Limitation Act
Subject Access Requests (SARs)	All data subjects	SAR forms, responses	3 years	ICO guidance
CCTV Footage	Students, Staff, Visitors, Contractors	CCTV video recordings, audio (if applicable)	30 days (longer if part of an investigation)	ICO CCTV Code of Practice, Crime Prevention and Security Best Practice
Visitor Logs	Visitors, Guest Speakers, External Stakeholders	Sign-in sheets, access-control logs, visitor book entries	2 years	Security & Safeguarding Best Practice and Limitation Act 1980

Appendix 1 Data Disposal Log

If you wish to dispose of any data held at Trent Education Centre (TEC), you must first attain authorisation from the Data Protection Lead (DPL) it-support@trenteducation.ac.uk and the Head of Partnerships and Compliance raana@trenteducation.ac.uk

Then you need to input the information on the data you intend to dispose of in the Data Disposal Log

Data Disposal Log

Data of disposal	Retention Period	Reasons and justification	Staff who proposed disposal	DPL Authorisation	HPC authorisation